

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

DAVILLE CAMPBELL,

Plaintiff,

-against-

THE CITY OF NEW YORK, DET. EVAGELOS
DIMITRAKAKIS, DET. JOEL POLICHRON, UNDERCOVER
OFFICER C0259, UNDERCOVER OFFICER 304, DET. PAUL
ORTIZ, DET. EMRAH ATEES, SGT. ADAN MUNOZ, AND
“JOHN/JANE DOES 1-10”,

Defendants.

Index No.:

Purchased On:

Plaintiff designates KINGS
as the place of trial.

The basis of the venue is place of
occurrence

SUMMONS

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer or, if the Complaint is not served with the Summons, to serve a notice of appearance, on Plaintiff's Attorneys within 20 days after the service of the Summons, exclusive of the day of service (or within 30 days after the service is complete if the Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, a judgment will be taken against you by default for the relief demanded in this Verified Complaint.

Dated: Mineola, New York
January 14, 2016

FINZ & FINZ, P.C.



By: _____

Ameer Benno, Esq.
410 East Jericho Turnpike
Mineola, NY 11501
Tel.: (516) 433-3000

Attorneys for Plaintiff

Ameer Benno, Esq.
FINZ & FINZ, P.C.
410 East Jericho Turpike
Mineola, NY 11501
Tel.: (516) 433-3000
abenno@finzfir.com

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF KINGS

DAVILLE CAMPBELL,

Plaintiff,

vs.

THE CITY OF NEW YORK, DET. EVAGELOS
DIMITRAKAKIS, DET. JOEL POLICHRON,
UNDERCOVER OFFICER C0259, UNDERCOVER
OFFICER 304, DET. PAUL ORTIZ, DET. EMRAH
ATES, SGT. ADAN MUNOZ, AND "JOHN/JANE
DOES 1-10",

Defendants.

Index No.:

COMPLAINT

JURY TRIAL REQUESTED

Plaintiff, by his attorneys, FINZ & FINZ, P.C., complaining of Defendants, alleges as follows,
upon information and belief:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violation of his civil rights under 42 U.S.C. § 1983 and the Fourth and Fourteenth Amendments to the United States Constitution. Plaintiff also asserts claims under New York law and the New York State Constitution.

1
2
3
4
5
6
7
8
9
0
1
2
3
4
5
6
7
8
9
0

2. Plaintiff demands trial by jury of all issues properly triable thereby.

VENUE

3. Venue is proper for the Supreme Court, County of Kings, pursuant to CPLR § 504(3), as it is the county within the City of New York in which the incident occurred.

THE PARTIES

4. Plaintiff DAVILLE CAMPBELL is a resident of the County of Kings in the City and State of New York.

5. That at all times herein mentioned, defendant CITY OF NEW YORK (hereinafter “CITY”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

6. That at all times herein mentioned, defendant CITY operated, controlled and maintained a police force known as the New York Police Department (“hereinafter “NYPD”).

7. That at all times herein mentioned, defendant DET. EVAGELOS DIMITRAKAKIS (hereinafter, "DIMITRAKAKIS") was and is an NYPD officer employed by defendant CITY.

8. That at all times herein mentioned, defendant DIMITRAKAKIS was acting within the course and scope of his employment with defendant CITY.

9. That at all times herein mentioned, defendant DIMITRAKAKIS was acting under color of state law.

10. Defendant DIMITRAKAKIS is sued herein in both his individual and official capacities.

11. That at all times herein mentioned, defendant DET. JOEL POLICHRON

1 (hereinafter, "POLICHRON") was and is an NYPD officer employed by defendant CITY.

2 12. That at all times herein mentioned, defendant POLICHRON was acting within the
3 course and scope of his employment with defendant CITY.

4 13. That at all times herein mentioned, defendant POLICHRON was acting under
5 color of state law.

6 14. That defendant POLICHRON is sued herein in both his individual and official
7 capacities.

8 15. That at all times herein mentioned, defendant UNDERCOVER OFFICER C0259
9 (hereinafter, "U/C C0259") was and is an NYPD officer employed by defendant CITY.

10 16. That at all times herein mentioned, defendant U/C C0259 was acting within the
11 course and scope of his/her employment with defendant CITY.

12 17. That at all times herein mentioned, defendant U/C C0259 was acting under color
13 of state law.

14 18. That defendant U/C C0259 is sued herein in both his/her individual and official
15 capacities.

16 19. That at all times herein mentioned, defendant UNDERCOVER OFFICER 304
17 (hereinafter, "U/C 304") was and is an NYPD officer employed by defendant CITY.

18 20. That at all times herein mentioned, defendant U/C 304 was acting within the
19 course and scope of his/her employment with defendant CITY.

20 21. That at all times herein mentioned, defendant U/C 304 was acting under color of
state law.

22. That defendant U/C 304 is sued herein in both his/her individual and official
capacities.

1 23. That at all times herein mentioned, defendant DET. PAUL ORTIZ (hereinafter,
2 “ORTIZ”) was and is an NYPD officer employed by defendant CITY.

3 24. That at all times herein mentioned, defendant ORTIZ was acting within the course
4 and scope of his employment with defendant CITY.

5 25. That at all times herein mentioned, defendant ORTIZ was acting under color of
6 state law.

7 26. Defendant ORTIZ is sued herein in both his individual and official capacities.

8 27. That at all times herein mentioned, defendant DET. EMRAH ATES (hereinafter,
9 “ATES”) was and is an NYPD officer employed by defendant CITY.

10 28. That at all times herein mentioned, defendant ATES was acting within the course
11 and scope of his employment with defendant CITY.

12 29. That at all times herein mentioned, defendant ATES was acting under color of
13 state law.

14 30. Defendant ATES is sued herein in both his individual and official capacities.

15 31. That at all times herein mentioned, defendant SGT. ADAN MUNOZ (hereinafter,
16 “MUNOZ”) was and is an NYPD officer employed by defendant CITY.

17 32. That at all times herein mentioned, defendant MUNOZ was acting within the
18 course and scope of his employment with defendant CITY.

19 33. That at all times herein mentioned, defendant MUNOZ was acting under color of
20 state law.

 34. Defendant MUNOZ is sued herein in both his individual and official capacities.

 35. That at all times herein mentioned, defendants JOHN DOES 1 through 10
(hereinafter, “DOES 1-10”) were and are NYPD officers and employed by defendant CITY.

1 36. That at all times herein mentioned, defendants DOES 1 through 10 were acting
2 within the course and scope of their employment with defendant CITY.

3 37. That at all times herein mentioned, defendants DOES 1 through 10 were acting
4 under color of state law.

5 38. The names "JOHN/JANE DOES 1 through 10" are fictitious, as these defendants'
6 true names are presently unknown.

7 39. These defendants are intended to be the law enforcement personnel involved in
8 the stop, detention, assault, battery, searches, arrest, imprisonment, and prosecution of plaintiff.

9 40. That defendants DOES 1 through 10 are sued herein in both their individual and
10 official capacities.

11 41. That at all times herein mentioned, defendant CITY was under an obligation to
12 use reasonable care in the hiring, training, retention, and supervision of its employees, including,
13 without limitation, defendants DIMITRAKAKIS, POLICHRON, U/C C0259, U/C 304, ORTIZ,
14 ATEs, MUNOZ, AND DOES 1-10.

15 42. At all relevant times herein, the individual defendants acted jointly and in concert
16 with each other.

17 43. Each individual defendant had the duty and the opportunity to protect plaintiff
18 from the unlawful actions of the other individual defendants, but each individual defendant failed
19 and refused to perform such duty, thereby proximately causing plaintiff's injuries.

20 **JOINT AND SEVERAL LIABILITY**

 44. That all of the causes of action pleaded herein fall within one or more of the
exceptions set forth in New York's Civil Practice Law & Rules § 1602 with respect to joint and
several liability.

1
2 **STATEMENT OF FACTS COMMON TO ALL CAUSES OF ACTION**

3 45. The facts stated in this complaint are based, inter alia, on the personal knowledge
4 of plaintiff regarding events in which he was directly involved and upon information and belief.
5 The sources of “information and belief” factual statements are primarily documents from the
6 underlying criminal prosecution and related public documents which are currently available to
7 plaintiff. Those sources are incomplete, particularly, without limitation, as to numerous
8 documents and court exhibits. This complaint is drawn without the benefit of full discovery
9 proceedings.

10 46. Plaintiff repeats and realleges each and every allegation set forth above as though
11 fully set forth at length herein.

12 47. On or about October 25, 2014 at approximately 6:28 p.m., plaintiff was lawfully
13 present in the vicinity of 908 Dumont Avenue in Brooklyn, New York.

14 48. On the aforesaid date, time and location, NYPD police officers, including
15 defendants herein, intentionally and/or with deliberate indifference to plaintiff’s constitutional and
16 civil rights forcibly seized, detained, arrested, and searched plaintiff without justification,
17 privilege or probable cause.

18 49. Defendants, without any lawful justification, gratuitously used force against
19 plaintiff and used more force than was reasonably necessary against plaintiff. This included,
20 without limitation, affixing the handcuffs on plaintiff excessively tightly.

 50. Upon arresting plaintiff, defendants placed plaintiff in the back of an NYPD police
van. Plaintiff was rear handcuffed and defendants did not secure any seat belt to plaintiff in order
to protect him from injury.

1 51. Defendants thereafter deliberately, recklessly, with deliberate indifference, and/or
2 in a negligent/grossly negligent manner drove said police vehicle so as to cause plaintiff to be
3 propelled from his seat and to cause and precipitate plaintiff's body to forcefully strike against the
4 interior of the van in a manner that was likely to, and did, cause injury to plaintiff.

5 52. Plaintiff was falsely imprisoned in defendants' custody for an extended period of
6 time.

7 53. While plaintiff was unlawfully imprisoned, defendants knowingly relayed false
8 allegations against plaintiff that they had devised to the Kings County District Attorney's Office,
9 which used that information to draft accusatory instruments against plaintiff.

10 54. Thereafter, defendants DIMITRAKAKIS signed said accusatory instruments, and
11 defendant U/C C0259 signed a supporting deposition, which, based on the fabricated information
12 that defendants had provided to the District Attorney's Office, charged plaintiff with various
13 offenses.

14 55. Plaintiff did not commit the offenses with which he was charged, nor did he
15 commit any offense or engage in any unlawful conduct on October 25, 2014; nor did any police
16 officer observe plaintiff do so.

17 56. Defendant DIMITRAKAKIS signed the accusatory instruments, and defendant
18 U/C C0259 signed the supporting deposition, thereby swearing to the veracity of those documents'
19 allegations, under penalty of perjury, despite their knowing that there was no truth to those
20 allegations whatsoever, that these allegations against plaintiff were false and completely
fabricated, that there was never any legal basis to have detained or arrested plaintiff, and that there
was no legal basis to prosecute him.

 57. All defendants conspired to lodge these false allegations against plaintiff and

1 initiate a prosecution against him for offenses they knew he did not commit.

2 58. Defendants engaged in the above-described conduct intentionally and/or with
3 deliberate indifference to plaintiff's constitutional and civil rights.

4 59. Plaintiff was arraigned on a criminal court complaint, and thereafter on a
5 superseding criminal court complaint, both of which were based on the false and fabricated
6 information provided by defendants, under Kings County Docket Number 2014KN080563 and
7 was released on his own recognizance.

8 60. Plaintiff thereafter was required on several occasions to appear in court to defend
9 against the false criminal charges that had been lodged against him.

10 61. The prosecution of plaintiff continued until approximately March 19, 2015, at
11 which time all charges against plaintiff were dismissed.

12 62. As a result of the foregoing, plaintiff sustained, inter alia, loss of earnings, loss of
13 enjoyment of life, loss of liberty, severe physical injuries, emotional distress, mental anguish,
14 embarrassment and humiliation, shame, indignity, damage to reputation, incurred monetary costs,
15 economic loss, and deprivation of his constitutional rights.

16 63. The amount of damages sought in this action exceeds the jurisdictional limits of all
17 lower Courts that might otherwise have jurisdiction.

18 **FIRST CAUSE OF ACTION AGAINST DEFENDANTS**
19 **DIMITRAKAKIS, POLICHRON, U/C C0259, U/C 304,**
20 **ORTIZ, ATEs, MUNOZ, AND DOES 1-10**

(False Arrest/Imprisonment Claim Under 42 U.S.C. § 1983)

64. Plaintiff repeats and realleges each and every allegation set forth above as though
fully set forth at length herein.

65. Defendants, while acting in concert and within the scope of their employment and

1 authority, and without a warrant, seized plaintiff, forcibly put plaintiff into handcuffs, placed
2 plaintiff under arrest without any reasonable cause to believe that plaintiff had committed, was
3 committing, or was about to commit any offense, and caused plaintiff to be imprisoned, and
4 thereby deprived plaintiff of his rights, liberties, and freedoms under color of state law, including
5 plaintiff's right to be free from unreasonable searches and seizures under the Fourth and
6 Fourteenth Amendments to the United States Constitution.

7 **SECOND CAUSE OF ACTION AGAINST DEFENDANTS**
8 **DIMITRAKAKIS, POLICHRON, U/C C0259, U/C 304,**
9 **ORTIZ, ATEs, MUNOZ, AND DOES 1-10**

10 **(Excessive Force Claim Under 42 U.S.C. § 1983)**

11 66. Plaintiff repeats and realleges each and every allegation set forth above as though
12 fully set forth at length herein.

13 67. Defendants, acting in concert and within the scope of their employment and
14 authority, used objectively unreasonable force in arresting plaintiff, in violation of plaintiff's right
15 to be free from unreasonable seizure under the Fourth and Fourteenth Amendments to the United
16 States Constitution.

17 **THIRD CAUSE OF ACTION AGAINST DEFENDANTS**
18 **DIMITRAKAKIS, POLICHRON, U/C C0259, U/C 304,**
19 **ORTIZ, ATEs, MUNOZ, AND DOES 1-10**

20 **(Malicious Abuse of Process Claim Under 42 U.S.C. § 1983)**

68. Plaintiff repeats and realleges each and every allegation set forth above as though
fully set forth at length herein.

69. Defendants, acting in concert and within the scope of their employment and
authority, employed regularly issued process against plaintiff compelling the performance or

1 forbearance of prescribed acts. The purpose of activating the process was intent to harm plaintiff
2 without economic or social excuse or justification, and the defendants were seeking a collateral
3 advantage or corresponding detriment to plaintiff which was outside the legitimate ends of the
4 process. Such collateral objective included, but was not limited to, covering up defendants' illegal
actions in knowingly arresting plaintiff without any legal basis, justification, or probable cause.

5 70. The acts and conduct of the defendants were the direct and proximate cause of
6 injury and damage to plaintiff and that by virtue of the aforementioned acts, plaintiff was deprived
7 of his rights, privileges and immunities secured by the Constitution of the United States, including
8 his rights under the Fourth and Fourteenth Amendments to the U.S. Constitution to be free from
unreasonable or unlawful searches and seizures and to due process of law.

9
10 **FOURTH CAUSE OF ACTION AGAINST DEFENDANTS**
DIMITRAKAKIS, POLICHRON, U/C C0259, U/C 304,
ORTIZ, ATEs, MUNOZ, AND DOES 1-10

11 **(Failure to Intervene Claim Under 42 U.S.C. § 1983)**

12 71. Plaintiff repeats and realleges each and every allegation set forth above as though
13 fully set forth at length herein.

14 72. Each individual defendant had an affirmative duty to intervene on behalf of
15 plaintiff, whose constitutional rights were being violated in that defendant's presence by other
16 police officers, but failed to intervene to prevent the unlawful conduct, despite having had a
17 realistic opportunity to do so, in violation of plaintiff's right under the Fourth and Fourteenth
Amendments to the United States Constitution.

1
2 **FIFTH CAUSE OF ACTION AGAINST DEFENDANT CITY**

3 **(Municipal Liability “Monell” Claim under 42 U.S.C. § 1983)**

4 73. Plaintiff repeats and realleges each and every allegation set forth above as though
5 fully set forth at length herein.

6 74. The individual defendants, singly and collectively, while acting within the scope of
7 their employment and authority and under color of state law, engaged in conduct that constituted
8 customs, policies, practices, procedures, rules, or usages of the NYPD and their specific
9 precinct(s) forbidden by the Constitution of the United States.

10 75. The foregoing customs, policies, practices, procedures, rules, and usages include,
11 but are not limited to, making arrests without probable cause, subjecting individuals to excessive
12 force, and committing perjury.

13 76. The abuse to which plaintiff was subjected was consistent with an institutionalized
14 practice of the NYPD, which was known to and ratified by defendant CITY.

15 77. Despite knowledge of these institutionalized practices, defendant CITY has at no
16 time taken any effective action to prevent NYPD personnel from continuing to engage in this type
17 of misconduct.

18 78. Defendant CITY had prior notice of the vicious propensities of defendants
19 DIMITRAKAKIS, POLICHRON, U/C C0259, U/C 304, ORTIZ, ATES, MUNOZ, AND DOES
20 1-10, but took no steps to train them, correct their abuse of authority, or to discourage their
unlawful use of authority.

79. The failure of defendant CITY to properly train defendants DIMITRAKAKIS,
POLICHRON, U/C C0259, U/C 304, ORTIZ, ATES, MUNOZ, AND DOES 1-10 included the

1 failure to instruct them in applicable provisions of the State Penal Law of the State of New York,
2 federal and state constitutional limitations, and the proper and prudent use of force.

3 80. Defendant CITY authorized, tolerated as institutionalized practices, and ratified
4 the misconduct detailed above by, among other things:

- 5 a. Failing to properly discipline, train, restrict, and control employees, including
6 defendants DIMITRAKAKIS, POLICHRON, U/C C0259, U/C 304, ORTIZ,
7 ATES, MUNOZ, AND DOES 1-10, known to be irresponsible in their
8 dealings with citizens of the community;
- 9 b. Failing to take adequate precautions in the training, hiring, promotion, and
10 retention of police personnel, including specifically defendants
11 DIMITRAKAKIS, POLICHRON, U/C C0259, U/C 304, ORTIZ, ATES,
12 MUNOZ, AND DOES 1-10;
- 13 c. Failing to forward to the office of the District Attorney of Kings County
14 evidence of unlawful acts committed by police personnel;
- 15 d. Failing to establish or assure the functioning of a bona fide and meaningful
16 departmental system for dealing with complaints of police misconduct, but
17 instead responding to these types of complaints with bureaucratic power and
18 official denials calculated to mislead the public;
- 19 e. Wrongfully arresting minority individuals on the pretext that they were
20 involved in drug transactions;
- f. Manufacturing evidence against individuals allegedly involved in drug
transactions;

- 1 g. Searching and/or strip-searching individuals in the absence of individualized
2 reasonable suspicion;
- 3 h. Arresting innocent persons in order to meet “productivity goals” (i.e., arrest
4 quotas);
- 5 i. That the failure to supervise and/or train by defendant CITY of defendants
6 DIMITRAKAKIS, POLICHRON, U/C C0259, U/C 304, ORTIZ, ATES,
7 MUNOZ, AND DOES 1-10 rose to the level of deliberate indifference to the
8 consequences of its actions, and indifference to plaintiff’s rights, privileges and
9 immunities secured by the Constitution of the United States of America, inter
10 alia, plaintiff’s Fourth and Fourteenth Amendment rights.

11 81. The existence of the aforesaid unconstitutional customs and policies may be
12 inferred from repeated occurrences of similar wrongful conduct, as documented in the following
13 civil rights actions filed against the City of New York and defendants herein named:

- 14 a. Brown v. City of New York, et al., 08-cv-5095 (EDNY)
- 15 b. Hamilton v. City of New York, et al., 14-cv-4819 (EDNY)
- 16 c. Edwards v. City of New York, et al., 14-cv-6621 (EDNY)
- 17 d. Young v. City of New York, et al., 11-cv-2085 (EDNY)
- 18 e. Hutchins v. City of New York, et al., 15-cv-5900 (EDNY)
- 19 f. Hayes v. City of New York, et al., 11-cv-4676 (EDNY)
- 20 g. Andrews v. City of New York, et al., 14-cv-5039 (EDNY)
- h. Walls v. City of New York, et al., 10-cv-5769 (EDNY)
- i. Whitaker v. City of New York, et al., 11-cv-1546 (EDNY)
- j. Mack v. City of New York, et al., 10-cv-3257 (EDNY)

- 1 k. Toppings v. City of New York, et al., 09-cv-2598 (EDNY)
- 2 l. Brown v. City of New York, et al., 11-cv-6074 (EDNY)
- 3 m. John v. City of New York, et al., 15-cv-7199 (EDNY)
- 4 n. Bond v. City of New York, et al., 11-cv-4675 (EDNY)
- 5 o. Coulter v. City of New York, et al., 07-cv-5308 (EDNY)
- 6 p. Danton v. City of New York, et al., 10-cv-8089 (EDNY)
- 7 q. Rivera v. City of New York, et al., 13-cv-2952 (EDNY)
- 8 r. Bell v. City of New York, et al., 14-cv-4585 (EDNY)
- 9 s. Forte v. Famiano, et al., 15-cv-3302 (EDNY)
- 10 t. Mitchell v. City of New York, et al., 14-cv-3205 (EDNY)
- 11 u. Howell v. Ates, et al., 11-cv-5485 (EDNY)
- 12 v. Richburg v. City of New York, et al., 12-cv-5590 (EDNY)
- 13 w. Applewhite v. City of New York, et al., 11-cv-0802 (EDNY)
- 14 x. Smith v. City of New York, et al., 14-cv-5841 (EDNY)
- 15 y. Hutson v. City of New York, et al., 12-cv-2547 (EDNY)
- 16 z. Dunn v. City of New York, et al., 14-cv-5911 (EDNY)
- 17 aa. Giles v. Spataro, et al., 15-cv-0893 (EDNY)
- 18 bb. Cayemittes v. City of New York, et al., 15-cv-2364 (EDNY)
- 19 cc. Rodriguez v. City of New York, et al., 15-cv-793 (EDNY)
- 20 dd. Edwards v. City of New York, et al., Index # 31038/2010 (Sup. Ct. Kings Co.)
- ee. Christmas v. City of New York, et al., Index # 920/2014 (Sup. Ct. Kings Co.)
- ff. Berry v. City of New York, et al., Index # 728/2015 (Sup. Ct. Kings Co.)
- gg. Brown v. City of New York, et al., Index # 16528/2014 (Sup. Ct. Kings Co.)

1 82. The existence of the aforesaid unconstitutional customs and policies is also
2 established by the evidence and proof adduced in People v. Arbeedy, Ind. No. 6314/2008 (Sup.
3 Ct. Kings Co.) (NYPD narcotics detective found guilty of planting drugs on two innocent
4 civilians; former undercover NYPD narcotics officer, Steve Anderson, testified that fellow
5 narcotics officers routinely maintained a stash of narcotics to plant on innocent civilians in order
6 to help those officers meet arrest quotas; Mr. Anderson testified concerning the NYPD's
7 practice of "attaching bodies" to the narcotics to make baseless arrests, stating: "It was
8 something I was seeing a lot of, whether it was from supervisors or undercovers and even
9 investigators. Seeing it so much, it's almost like you have no emotion with it. The mentality
10 was that they attach bodies to it, they're going to be out of jail tomorrow anyway, nothing is
11 going to happen to them anyway. That kind of came to me and I accepted it – being around so
12 long, and being an undercover"; The presiding judge, Justice Reichbach, stated "Having been a
13 judge for 20 years, I thought I was not naïve regarding the reality of narcotics enforcement. But
14 even the Court was shocked, not only by the seeming pervasive scope of the misconduct, but
15 even more distressingly by the seeming casualness by which such conduct is employed").

16 83. The NYPD has inadequately screened, hired, retained, trained, and supervised its
17 employees, including the individual defendants herein, to respect the constitutional rights of those
18 individuals with whom NYPD police officers come in contact.

19 84. The foregoing customs, policies, practices, procedures, rules, and usages
20 constituted deliberate indifference to plaintiff's safety, well-being, and constitutional rights.

 85. The foregoing customs, policies, practices, procedures, rules, or usages were the
direct and proximate cause of the constitutional violations suffered by plaintiff.

1 86. The foregoing customs, policies, practices, procedures, rules, or usages were the
2 moving force behind the constitutional violations suffered by plaintiff.

3 **State Law Claims**

4 87. Plaintiff repeats and realleges each and every allegation set forth above as though
5 fully set forth at length herein.

6 88. Within ninety (90) days after the claims herein arose, plaintiff duly served
7 upon, presented to, and filed with defendant CITY OF NEW YORK a Notice of Claim setting
8 forth all facts and information required under New York General Municipal Law § 50-e.

9 89. More than thirty (30) days have elapsed since the presentation of plaintiff's claims
10 to defendant CITY, and defendant CITY has wholly neglected or refused to make an adjustment
11 or payment thereof.

12 90. This action was commenced within one (1) year and ninety (90) days after the
13 claims accrued.

14 91. Plaintiff has complied with all conditions precedent to maintaining the instant
15 action.

16 **SIXTH CAUSE OF ACTION AGAINST ALL DEFENDANTS**

17 **(False Arrest/Imprisonment Claim under New York Law)**

18 92. Plaintiff repeats and realleges each and every allegation set forth above as though
19 fully set forth at length herein.

20 93. Defendants, acting in concert and within the scope of their employment and
authority, arrested and caused plaintiff to be imprisoned without probable cause to believe that
plaintiff had committed any crime or offense, and without any warrant or authority to do so.

1 94. Defendant CITY is also liable for the damages suffered by plaintiff as a result of
2 the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

3 **SEVENTH CAUSE OF ACTION AGAINST ALL DEFENDANTS**

4 **(Assault Claim under New York Law)**

5 95. Plaintiff repeats and realleges each and every allegation set forth above as though
6 fully set forth at length herein.

7 96. Defendants, acting in concert and within the scope of their employment and
8 authority, placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

9 97. Defendant CITY is also liable for the damages suffered by plaintiff as a result of
10 the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

11 **EIGHTH CAUSE OF ACTION AGAINST ALL DEFENDANTS**

12 **(Battery Claim under New York Law)**

13 98. Plaintiff repeats and realleges each and every allegation set forth above as though
14 fully set forth at length herein.

15 99. Defendants, acting in concert and within the scope of their employment and
16 authority, made offensive contact with plaintiff without privilege or consent.

17 100. Defendant CITY is also liable for the damages suffered by plaintiff as a result of
18 the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

19 **NINTH CAUSE OF ACTION AGAINST ALL DEFENDANTS**

20 **(Abuse of Process Claim under New York Law)**

 101. Plaintiff repeats and realleges each and every allegation set forth above as though
fully set forth at length herein.

1 102. Defendants, acting in concert and within the scope of their employment and
2 authority, employed regularly issued process against plaintiff compelling the performance or
3 forbearance of prescribed acts. The purpose of activating the process was intent to harm plaintiff
4 without economic or social excuse or justification, and the defendants were seeking a collateral
5 advantage or corresponding detriment to plaintiff which was outside the legitimate ends of the
6 process. Such collateral objective included, but was not limited to, covering up defendants' illegal
actions in knowingly arresting plaintiff without any legal basis, justification, or probable cause.

7 103. Defendant CITY is also liable for the damages suffered by plaintiff as a result of
8 the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

9 **TENTH CAUSE OF ACTION AGAINST ALL DEFENDANTS**

10 **(Intentional Infliction of Emotional Distress)**

11 104. Plaintiff repeats and realleges each and every allegation set forth above as though
12 fully set forth at length herein.

13 105. Defendants, acting in concert and within the scope of their employment and
14 authority, engaged in the aforesaid conduct which was extreme, outrageous, shocking and which
exceeded all reasonable bounds of decency.

15 106. Defendants' extreme and outrageous conduct was intended to cause and did cause
16 severe emotional distress to plaintiff.

17 107. Defendant CITY is liable for the damages suffered by plaintiff as a result of the
18 conduct of its agents, servants and/or employees, under the doctrine of respondeat superior.
19
20

1 **ELEVENTH CAUSE OF ACTION AGAINST ALL DEFENDANTS**

2 **(Negligence / Gross Negligence)**

3 108. Plaintiff repeats and realleges each and every allegation set forth above as though
4 fully set forth at length herein.

5 109. That the aforesaid incident and resulting injuries to plaintiff were due to the
6 negligence and/or gross negligence of defendants, and each of them, in the manner in which they
7 performed their duties as officers of the NYPD; in failing to exercise reasonable care in
8 connection with the performance of their duties; in failing adequately to evaluate the situation
9 confronting them; and in otherwise being negligent and/or grossly negligent.

10 110. That the aforementioned incident and injuries to plaintiff were caused solely and
11 wholly by reason of the recklessness, carelessness, and negligence and/or gross negligence of
12 defendants herein and without any negligence on the part of plaintiff contributing thereto.

13 111. Defendant CITY is liable for the damages suffered by the plaintiff as a result of the
14 conduct of its agents, servants and/or employees, under the doctrine of respondeat superior.

15 **TWELFTH CAUSE OF ACTION AGAINST ALL DEFENDANTS**

16 **(Negligent Screening, Hiring, Supervision, And Retention Claim Under New York Law)**

17 112. Plaintiff repeats and realleges each and every allegation set forth above as though
18 fully set forth at length herein.

19 113. Defendants failed to use reasonable care in the screening, hiring, supervision, and
20 retention of the NYPD employees who participated in the above unlawful conduct.

 114. Defendant CITY is also liable for the damages suffered by plaintiff as a result of
the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

1
2
3
4
5
6
7
8
9
0
1
2
3
4
5
6
7
8
9
0

2

3

4

6

8

9

10

11

14

16

1 **PRAYER FOR RELIEF**

2 **WHEREFORE**, plaintiff demands the following relief jointly and severally against all the
3 defendants:

- 4 a. Compensatory damages in an amount to be determined at trial;
5 b. Punitive damages in an amount to be determined at trial;
6 c. Attorney's fees pursuant to 42 U.S.C. § 1988;
7 d. An award of plaintiff's costs of suit;
8 e. Pre-judgment and post-judgment interest;
9 f. Such other relief as this Court deems just and proper.

10 Dated: Mineola, New York
January 14, 2016

11
12 Respectfully submitted,

13 FINZ & FINZ, P.C.

14 By: _____


Ameer Benno, Esq.
410 East Jericho Turnpike
Mineola, NY 11501
Tel.: (516) 433-3000
Attorneys for Plaintiff